

TENTATIVE RULING

Case: **Lemonade Insurance Company v. Hartmeyer**
 Case No. CV2025-2934

Hearing Date: **September 1, 2026** **Department Fourteen** **9:00 a.m.**

Plaintiff Lemonade Insurance Company's motion to deem request for admissions admitted, and for sanctions in the amount of \$585.00 is **DENIED WITHOUT PREJUDICE**. (Code Civ. Proc., §§ 2023.010, 2033.280.) Plaintiff failed to serve the moving papers on defendant Sarah Catherine Hartmeyer's counsel by electronic service as required. (Cal. Rules of Court, rule 2.251(c); Code Civ. Proc., § 1010.6, subd. (i); YCR 7.2.)

The notice of motion provides notice of this Court's tentative ruling system. However, the notice does not contain the required language pursuant to Local Rule 11.2(b) (as amended, eff. Jan. 1, 2023). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **Tobia v. BLR Management LLC et al.**
Case No. CV2024-2002 (consolidated with CV2024-2563)
Hearing Date: **September 1, 2026** **Department Fourteen** **9:00 a.m.**

Motion for judgment on the pleadings – Case No. CV2024-2002:

Defendants BLR Management, LLC (“BLR”) and Erika Tejeda’s (“Tejeda”) (collectively, “defendants”) motion for judgment on the pleadings is **GRANTED WITH LEAVE TO AMEND**. (Code Civ. Proc., § 438, subds. (c)(1)(B), (2)(A), (d); *Ventura Coastal, LLC v. Occupational Safety & Health Appeals Bd.* (2020) 58 Cal.App.5th 1, 43, 32-33.) The Court finds that plaintiff’s complaint fails to state facts sufficient to constitute any cause of action alleged against defendants. (Code Civ. Proc., § 438, subd. (c)(1)(B)(ii); *Oasis West Realty, LLC v. Goldman* (2011) 51 Cal.4th 811, 821 [elements of a cause of action for breach of contract are (1) the existence of the contract, (2) plaintiff’s performance or excuse for nonperformance, (3) defendant’s breach, and (4) the resulting damages to the plaintiff]; *McKell v. Washington Mutual, Inc.* (2006) 142 Cal.App.4th 1457, 1489; Complaint; Tobia Decl.)

Plaintiff may file an amended complaint by no later than **October 1, 2026** (Code. Civ. Proc., §438, subd. (h).)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

Motion for judgment on the pleadings – Case No. CV2024-2563:

Tejeda’s motion for judgment on the pleadings on the ground that plaintiff’s first amended complaint does not state facts sufficient to constitute any cause of action against her is **GRANTED WITH LEAVE TO AMEND**. (Code Civ. Proc., § 438, subds. (c)(1)(B)(ii), (2)(A), (d); *Ventura Coastal, LLC, supra*, 58 Cal.App.5th at pp. 32-33.) The Court finds that plaintiff’s first amended complaint fails to state facts sufficient to constitute any cause of action alleged against Tejeda. (Code Civ. Proc., § 438, subd. (c)(1)(B)(ii); *Oasis West Realty, LLC, supra*, 51 Cal.4th at p. 821; *McKell, supra*, 142 Cal.App.4th at p. 1489; First Amended Complaint.)

Plaintiff may file an amended complaint by no later than **October 1, 2026** (Code. Civ. Proc., §438, subd. (h).)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.